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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

Franciscus Dylan Rosario,
PLAINTIFF,

v.

Subhi Abdelhalim;
CSAA Insurance Exchange;
PHILLIPS, SPALLAS & ANGSTADT LLP;
PRIYA D. NAVARATNASINGHAM;
ALBERTO REYNA;
MICHAEL R. CHAMBERS;
CARBONE, SMITH & KOYAMA;
and DOES 1 through 50, inclusive;
DEFENDANTS

Case No.: CGC-25-631801

(Related to Case No.: CGC-21-594102)

**AMENDED COMPLAINT FOR
INDEPENDENT ACTION IN EQUITY
TO SET ASIDE JUDGMENT FOR
EXTRINSIC FRAUD**

(Code Civ. Proc., § 187; Inherent
Equitable Power; *Kulchar v. Kulchar*
(1969) 1 Cal.3d 467)

**DEMAND FOR JURY TRIAL ON ALL
ISSUES SO TRIABLE; EQUITABLE
ISSUES TO THE COURT**

PRELIMINARY STATEMENT AND NATURE OF THE ACTION

The Gravamen of the Action: This is an independent action in equity to set aside the Final Judgment entered in Case No. CGC-21-594102 (the “Underlying Action”) on the grounds of extrinsic fraud that deprived Plaintiff Franciscus Dylan Rosario (“Plaintiff”) of a fair opportunity to present material evidence and fairly litigate liability. This action is brought against Defen-

1 dant Subhi Abdelhalim (the judgment beneficiary in the Underlying Action), Defendant CSAA
2 Insurance Exchange (the liability insurer that funded, directed, and controlled the defense), De-
3 fendants PHILLIPS, SPALLAS & ANGSTADT LLP, PRIYA D. NAVARATNASINGHAM, and
4 ALBERTO REYNA (the retained defense counsel and attorneys who made false and misleading
5 representations to the Court that procured the judgment through fraud), Defendants MICHAEL R.
6 CHAMBERS and CARBONE, SMITH & KOYAMA (the original defense counsel and law firm
7 that had possession of the evidence during discovery and transferred the defense file to PSA on
8 May 4, 2023, without ensuring proper documentation of production history, which enabled suc-
9 cessor counsel to make the false representations), and DOES (collectively, “Defendants”).

10 **The Critical Distinction:** This action is not a mere attempt to relitigate settled facts, nor is it
11 a complaint regarding ordinary “intrinsic” credibility disputes. Plaintiff acknowledges the high
12 burden required to overturn a final verdict. However, the fraud committed here was a scheme
13 that prevented a fair contest by (a) obstructing access to and usable presentation of critical inci-
14 dent recordings and (b) making false or misleading representations to the Court, which induced
15 procedural and evidentiary rulings under materially false premises.

16 **Primary Equitable Relief and Ancillary Equitable Monetary Relief:** Plaintiff seeks equitable
17 relief to vacate the judgment and obtain a fair retrial. In addition, Plaintiff seeks ancillary equitable
18 monetary relief, restitutionary in nature and incident to vacatur, to restore Plaintiff from the process
19 corruption. All monetary relief sought is incremental, temporally bounded to the fraud-driven
20 period, and is not a relabeling of collision damages or ordinary litigation burdens. The categories
21 of such relief are set forth in Section III.H, below.

22 This action does not plead defamation or any tort claim for damages based on litigation commu-
23 nications as protected petitioning activity. Statements and litigation events are alleged as operative
24 facts to show how the judgment was procured through extrinsic fraud and why equity must set it
25 aside, and any equitable monetary relief sought is requested as ancillary relief incident to vacatur
26 and restoration of a fair adjudicatory process.

27 Plaintiff seeks equitable relief to set aside the judgment and restore a fair adjudication on a truthful
28 record because the adverse outcome was procured by fraud on the Court. Plaintiff does not plead

1 a separate damages tort based on litigation communications as such; the gravamen is corruption of
2 the adjudicatory process and court reliance resulting in an unjust judgment.

3 **The Mechanism of Fraud:** In the Underlying Action, Defendants Abdelhalim and CSAA In-
4 surance Exchange, through Defendants PHILLIPS, SPALLAS & ANGSTADT LLP, PRIYA D.
5 NAVARATNASINGHAM, and ALBERTO REYNA (and other litigation agents), did not merely
6 dispute the facts. The defense obstructed Plaintiff's ability to present material evidence, including
7 (a) a 911 call recording containing Defendant Abdelhalim's party admission ("I barely hit him
8 with anything"), (b) body-worn camera footage containing eyewitness statements, and (c) CAD
9 logs. The defense then made false and misleading representations to the Court about receipt, pos-
10 session, and prior production of these materials, falsely denying knowledge and receipt despite
11 having received the materials during discovery. The Court relied on those representations to deny
12 continuances, exclude materials, and defer admission, which impaired Plaintiff's ability to present
13 the evidence in a usable, timely way at a liability-only trial.

14 **The Three-Leg Framework of Extrinsic Fraud:** This fraud operates on three legs: (1) defense-
15 side knowledge and access to the materials through prior possession and production history; (2)
16 false and misleading representations to the Court about receipt and prior production, including
17 false denials of knowledge and false claims of "unknown provenance"; and (3) Court reliance that
18 resulted in concrete rulings and procedural barriers that prevented Plaintiff from fairly presenting
19 the evidence.

20 **Extrinsic vs. Intrinsic:** This constitutes extrinsic fraud because the misconduct deprived Plaintiff
21 of a fair opportunity to present the case and obtain a true adversarial contest on liability. Plaintiff
22 was not merely handicapped by disputed evidence. Plaintiff was effectively prevented from pre-
23 senting and using critical evidence through Court orders and rulings induced by false or misleading
24 representations. This corruption of the Court's process prevented Plaintiff from having a full and
25 fair day in court, satisfying the strict requirements for equitable relief to set aside a judgment under
26 *Kulchar v. Kulchar* (1969) 1 Cal.3d 467, 471.

27 **The Resulting Injustice:** As a direct and proximate result of this fraud, a defense verdict and
28 judgment were entered against Plaintiff. Had Plaintiff been given a fair opportunity to present the

1 911 call admission, body cam footage, and CAD logs without procedural barriers created by false
2 or misleading representations, the outcome would likely have been different. Equity demands that
3 the judgment be vacated and that the case be retried on a fair record.

4 **Concrete Harms Caused by the Fraud:** The fraud and resulting deprivation of a fair contest
5 caused Plaintiff concrete harms beyond the adverse verdict itself. Plaintiff lost substantial pro-
6 ductive time and opportunities solely because the process was corrupted, including time spent on
7 emergency foundation work, repeated motions and appearances that would not have been nec-
8 essary but for the false “non-receipt/unknown provenance” premise, and record reconstruction.
9 Plaintiff experienced significant emotional distress, anxiety, and humiliation from being forced to
10 try the case on a distorted record while being accused of late disclosure and fabrication; these
11 facts support the prejudice showing and why equity should intervene. The process also imposed a
12 physical toll and medically documented exacerbation of stress-related symptoms during the fraud-
13 driven period. This includes incremental medical/therapy/pharmacy expenses temporally tied to
14 that period (e.g., visits, medications, and copays) as further described below. Plaintiff incurred
15 out-of-pocket costs as described in Section III.H, below.

16 **PARTIES, JURISDICTION, AND VENUE**

17 **Plaintiff:** Plaintiff Franciscus Dylan Rosario is an individual residing in the County of San Fran-
18 cisco, State of California, and was the Plaintiff in the Underlying Action, Case No. CGC-21-
19 594102, tried before the Honorable Garrett L. Wong in Department 504 of the Superior Court of
20 California, County of San Francisco.

21 **Defendant Subhi Abdelhalim:** Defendant Subhi Abdelhalim is an individual who was the defen-
22 dant and judgment beneficiary in the Underlying Action.

23 **Defendant CSAA Insurance Exchange:** On information and belief, Defendant CSAA Insurance
24 Exchange is a liability insurer that provided insurance coverage to Defendant Abdelhalim and
25 funded, directed, and controlled the defense of the Underlying Action through retained defense
26 counsel. CSAA Insurance Exchange is the real party in interest that funded, directed, and rati-
27 fied the litigation positions and representations that procured the judgment through fraud on the
28 court. CSAA’s institutional denial practice, including its issuance of a categorical “investigation

concluded” denial letter just 21 days after the collision without obtaining foundational objective evidence, is the subject of the related action CGC-25-631802.

Defendant PHILLIPS, SPALLAS & ANGSTADT LLP: Defendant PHILLIPS, SPALLAS & ANGSTADT LLP (“PSA”) is a law firm doing business in California with its office at 560 Mission Street, Suite 1010, San Francisco, California 94105. PSA was retained by Defendant CSAA Insurance Exchange to represent Defendant Abdelhalim in the Underlying Action. PSA substituted in as counsel for Defendant Abdelhalim on or about May 4, 2023 (Substitution of Attorney, Transaction ID # 69953800), replacing prior defense counsel. PSA, through its attorneys Defendants Navaratnasingham and Reyna, made false and misleading representations to the Court regarding receipt, possession, and prior production of the 911 audio, bodycam footage, and CAD materials, and filed motions in limine containing materially false statements. The fraudulent representations and litigation positions that procured the judgment were made by PSA acting on behalf of and with the knowledge, funding, and direction of Defendants Abdelhalim and CSAA Insurance Exchange.

Defendant Priya D. Navaratnasingham: Defendant Priya D. Navaratnasingham (State Bar No. 252686) is an attorney associated with Defendant PSA. She substituted in as counsel for Defendant Abdelhalim on May 4, 2023, and thereby obtained possession of the defense file containing the 911 audio, bodycam footage, and CAD materials. She signed the Declaration in Support of Motions in Limine Nos. 1 through 19 filed January 17, 2025, which contained false and misleading representations about defense receipt and prior production of the evidence. On February 18, 2025, at a pretrial hearing before the Honorable Garrett L. Wong, she stated in substance that the 911/BWC evidence was “news to me” and that the defense office did not receive the materials until the day of the MSC, despite the defense-side prior receipt and possession of those materials as established by sworn hearing testimony. These representations were false and misleading and were relied upon by the Court. She appeared at trial in April 2025 and made or ratified additional false or misleading representations regarding evidence possession. Her conduct constituted fraud on the court.

Defendant Alberto Reyna: Defendant Alberto Reyna (State Bar No. 347323) is an attorney associated with Defendant PSA. He appeared as trial counsel for Defendant Abdelhalim at pretrial hearings and trial in the Underlying Action. He was present at the February 18, 2025 pretrial hear-

1 ing when Defendant Navaratnasingham made the “news to me” representation. He appeared at trial
2 in April 2025 and made or ratified false or misleading representations to the Court regarding receipt
3 and possession of the supplemental police report and the 911 call recording, including statements
4 in substance that the supplemental report was “not anything that we received as part of the sub-
5 poena” and that counsel was “not sure what recording” Plaintiff was referring to regarding the 911
6 call. These representations were false and misleading in light of the defense-side possession and
7 production history. He signed the Notice of Entry of Judgment dated April 29, 2025, on behalf of
8 Defendant Abdelhalim. His conduct, individually and in concert with PSA and Navaratnasingham,
9 constituted fraud on the court.

10 **Defendant Michael R. Chambers:** Defendant Michael R. Chambers (State Bar No. 132394) is an
11 attorney associated with Defendant Carbone, Smith & Koyama. He was the original defense coun-
12 sel for Defendant Abdelhalim in the Underlying Action until May 4, 2023. Defendant Chambers
13 and Carbone, Smith & Koyama had possession of the defense file when the 911 audio, body-worn
14 camera footage, and CAD materials were served on defense counsel during discovery (August
15 through September 2022), as established by sworn hearing testimony. On May 4, 2023, Defendant
16 Chambers transferred the defense file to PSA pursuant to the Substitution of Attorney (Transaction
17 ID # 69953800) without ensuring proper documentation and conveyance of the production his-
18 tory to successor counsel. This failure enabled Defendants PSA, Navaratnasingham, and Reyna to
19 make false and misleading representations to the Court that the materials were “news to me” and
20 had not been received until the eve of trial, when in fact the defense had possessed them during
21 Defendant Chambers’ tenure. Defendant Chambers’ conduct constituted fraud on the court and
22 was a proximate cause of the process corruption that procured the judgment.

23 **Defendant Carbone, Smith & Koyama:** Defendant Carbone, Smith & Koyama (“CSK”) is a law
24 firm doing business in California with its office at 555 12th Street, Suite 1250, Oakland, California
25 94607-4095. CSK, through Defendant Chambers, was the original defense counsel for Defen-
26 dant Abdelhalim until May 4, 2023. CSK had possession of the defense file when the 911 audio,
27 body-worn camera footage, and CAD materials were served during discovery (August through
28 September 2022). CSK transferred the defense file to PSA on May 4, 2023, without ensuring

proper documentation of the production history. This inadequate handoff enabled successor counsel to make false representations to the Court that corrupted the judicial process. CSK's conduct constituted fraud on the court and was a proximate cause of the process corruption that procured the judgment.

Jurisdiction: This Court has jurisdiction over this matter as a court of general jurisdiction sitting in equity. This Court retains inherent equitable power, including under Code Civ. Proc., § 187, to entertain an independent action to relieve a party from a judgment procured by extrinsic fraud.

Venue: Venue is proper in this County because the Underlying Action was litigated and the fraudulent Judgment was entered in the Superior Court of California, County of San Francisco, Department 504. The acts of fraud occurred within this jurisdiction during pre-trial hearings and trial proceedings, and the effects of the fraud are felt herein.

DETAILED FACTUAL BACKGROUND

THE UNDERLYING INCIDENT AND LAWSUIT

On or about February 4, 2021, Plaintiff was involved in a vehicle-pedestrian collision in San Francisco, California. Plaintiff was walking his scooter in a crosswalk when Defendant Subhi Abdelhalim, operating a vehicle, struck Plaintiff from behind. The central dispute in the Underlying Action was whether contact occurred and whether Defendant Abdelhalim was negligent.

Plaintiff filed the Underlying Action, Case No. CGC-21-594102, in the Superior Court of California, County of San Francisco, seeking damages for personal injuries. The case was tried before the Honorable Garrett L. Wong in Department 504. The trial was bifurcated, with Phase One tried on liability only. The jury returned a defense verdict on April 25, 2025, finding that Defendant Abdelhalim was not negligent.

The institutional context for this fraud is set forth in the related action CGC-25-631802: on February 25, 2021, just 21 days after the collision, CSAA Insurance Exchange issued a denial letter stating its investigation was "concluded" and its insured was "not liable," without having obtained or reviewed foundational objective evidence including the 911 call audio, body-worn camera footage, and CAD records. This categorical denial of investigative finality, issued before CSAA had reviewed the basic incident records, established the institutional deny-delay-defend context

1 that drove the courtroom fraud alleged herein. By representing investigative finality when it had
2 conducted no meaningful investigation, CSAA forced Plaintiff into the Underlying Action on a dis-
3 torted factual record, and CSAA-funded defense counsel subsequently repeated and perpetuated
4 the same denial pattern in court through the false representations described in this complaint.

5 **THE EXISTENCE OF DISPOSITIVE EVIDENCE: 911 CALL, BODY** 6 **CAM FOOTAGE, AND CAD LOGS**

7 Unbeknownst to Plaintiff at the time of trial, but fully known to Defendants and defense-side litiga-
8 tion agents, critical evidence existed that captured the incident and contained direct admissions of
9 contact: (1) a 911 call recording in which Defendant Abdelhalim stated “I barely hit him with any-
10 thing”; (2) body-worn camera footage from San Francisco Police Department officers containing
11 eyewitness statements corroborating contact; and (3) CAD logs documenting the incident.

12 **The 911 Call Evidence:** The 911 call recording contains Defendant Abdelhalim’s party admission
13 under Evid. Code, § 1220, in which he stated “I barely hit him with anything.” This statement
14 directly contradicts Defendant’s trial testimony that “no contact” occurred. At trial, Defendant
15 authenticated the recording, stating “Yes. That is my voice.” (Trial Transcript, Day 8 (4/17/25),
16 Line 1979.)

17 **The Body Cam Footage:** The body-worn camera footage contains eyewitness statements, includ-
18 ing a statement from an eyewitness (Mr. Rosemont) that “the man in the van hit the guy,” directly
19 corroborating contact and contradicting Defendant’s “no contact” defense.

20 **The CAD Logs:** The CAD logs document the incident and provide identifiers linking the 911 call,
21 body cam footage, and police reports together.

22 This evidence serves as objective, irrefutable proof that Plaintiff’s version of events was correct
23 and that Defendant’s denial of liability was false. Specifically, the 911 call admission establishes
24 contact occurred, and the body cam footage contains eyewitness corroboration of that contact.

25 **PLAINTIFF’S DILIGENCE DURING DISCOVERY**

26 During the discovery phase of the Underlying Action, Plaintiff exercised due diligence and ex-
27 hausted all available legal avenues to uncover the truth. Plaintiff propounded discovery requests

1 seeking 911 recordings, bodycam footage, and CAD logs. However, Defendant, through counsel,
2 suppressed and delayed usable access to this evidence through misleading discovery positions and,
3 more critically, through false and misleading representations to the Court that induced adverse
4 procedural and evidentiary rulings.

5 **Reasonable Reliance on Discovery Compliance and Court Enforcement:** Plaintiff alleges that
6 it was reasonable and appropriate to rely on the defense-side discovery obligations and represen-
7 tations regarding completeness and possession, rather than duplicating the defense's obligations
8 through last-minute third-party subpoenas. Plaintiff propounded discovery requests seeking 911
9 recordings, bodycam footage, and CAD logs. When the contradiction between defense-side repre-
10 sentations and the production history surfaced, Plaintiff raised the issue in the Underlying Action
11 and sought court intervention.

12 The core harm was not a failure to subpoena third-party records. The core harm was that the Court,
13 relying on defense-side false and misleading representations about receipt and prior possession,
14 made procedural and evidentiary rulings under a materially false premise. Plaintiff reasonably
15 relied on defense compliance with discovery obligations and on the Court to require verification
16 once the conflict was revealed on the record. Plaintiff alleges the defense side had already re-
17 ceived the materials through prior production history (as established by sworn hearing testimony),
18 yet Defendants Navaratnasingham and Reyna, on behalf of PSA and Defendants Abdelhalim and
19 CSAA, represented in court that the materials were not received until the day of the MSC and were
20 "news to me." Under these circumstances, Plaintiff alleges it was reasonable to rely on discovery
21 compliance and on the Court to require verification, rather than to assume the defense side had the
22 materials while simultaneously representing the opposite in open court.

23 **THE ACT OF EXTRINSIC FRAUD: FALSE STATEMENTS TO THE** 24 **COURT CORRUPTING THE JUDICIAL PROCESS**

25 The critical act of fraud, the act that moved this misconduct from "discovery violation" to extrinsic
26 fraud, occurred through a pattern of concealment and false or misleading representations to the
27 Court that caused the Court to make procedural and evidentiary rulings based on materially false
28 information. Defendants PSA, Navaratnasingham, and Reyna were the counsel who made, ratified,

1 and perpetuated these false representations.

2 **LEG 1: DEFENSE-SIDE KNOWLEDGE AND ACCESS**

3 Defense counsel and litigation agents acting for Defendants had access to the evidence at issue.
4 During discovery and depositions, J. Jessup from the Dolan Law Firm (Plaintiff's prior counsel)
5 served or provided the 911 audio recording and body-worn camera materials to defense counsel. At
6 a hearing on February 18, 2025, J. Jessup testified under oath, in substance, that materials including
7 bodycam footage (about five videos), a 911 audio recording, and a CAD log had been served
8 on defense counsel during discovery and depositions (including around September 2022), and
9 that the defense file was later transferred to subsequent defense counsel (including around August
10 2024). (Hearing Transcript, February 18, 2025.) Defendant Navaratnasingham had substituted in
11 as counsel on May 4, 2023, and thus had possession of the defense file containing these materials
12 for approximately 20 months before trial. Plaintiff alleges Defendants PSA, Navaratnasingham,
13 and Reyna therefore had knowledge of and access to these materials well before trial. Plaintiff
14 summarizes the record-anchored possession and misrepresentation chronology in Section III.E,
15 below.

16 **LEG 2: FALSE AND MISLEADING REPRESENTATIONS TO THE COURT**

17 Despite defense-side access and production history, Defendants PSA, Navaratnasingham, and
18 Reyna, acting on behalf of Defendants Abdelhalim and CSAA Insurance Exchange, made mul-
19 tiple false and misleading representations to the Court about receipt, possession, and prior produc-
20 tion of the materials. These false representations were memorialized in written motions in limine
21 and in open court statements: The key dates demonstrating continuity of defense-side receipt, file
22 possession, and repeated non-receipt narratives are summarized in Section III.E, below.

23 **False Representation in MIL No. 6 (January 17, 2025):** Defendant Navaratnasingham, on behalf
24 of Defendant PSA, filed or caused to be filed Motion in Limine No. 6 seeking to exclude "recorded
25 materials, photographs, or documents offered by Plaintiff that were not produced in discovery,"
26 including "audio of a 911 call purported to be related to the incident." (Clerk's Transcript, Volume
27 1, Page 149–151.) The motion asserted that such materials "were not produced in discovery" and
28 should be excluded. This representation was false and misleading because, as established by sworn

1 hearing testimony, the defense side had already received these materials during discovery.

2 **False Representation in MIL No. 17 (January 17, 2025):** Defendant Navaratnasingham signed
3 the Declaration in Support of Motions in Limine Nos. 1 through 19. Defendant filed or caused
4 to be filed Motion in Limine No. 17 specifically targeting the 911 call recording and transcript,
5 asserting: (1) “this alleged log and recording were not produced during discovery, rather produced
6 at the eleventh hour prior to trial”; (2) “Defendant has no idea where this 911 call log or audio
7 recording came from and who created it”; and (3) “Defendant has no idea who created the log
8 and recording, how they were maintained, how Plaintiff got them, or the identity of the custodian
9 of the log and recording.” (Clerk’s Transcript, Volume 1, Page 238.) These representations were
10 materially false because the defense side had already received the 911 audio and related materials
11 during discovery, as established by sworn hearing testimony. Defendants PSA, Navaratnasingham,
12 and Reyna knew or should have known of this production history by virtue of their possession of
13 the defense file.

14 In addition to these written false representations in motions in limine, Defendants Navaratnasing-
15 ham and Reyna made additional false and misleading representations in open court:

16 **False Statement #1: Pretrial hearing representation regarding non-receipt and “news to me”**
17 **(February 18, 2025):** At the February 18, 2025 pretrial hearing before the Honorable Garrett L.
18 Wong, Defendant Navaratnasingham represented, among other things, that the defense office did
19 not receive the 911 call until the day of the MSC (or immediately before), that it was “news to
20 me,” and that counsel could not confirm prior receipt or production. Defendant Reyna was present
21 at this hearing. Plaintiff alleges these representations were false and misleading in light of the
22 defense-side access and production history described above. Defendant Navaratnasingham had
23 possession of the defense file since May 4, 2023, which contained or referenced these materials.
24 These statements were materially false. The truth, as established by sworn hearing testimony and
25 the production history, was that the defense side had already received and had access to these
26 materials well before the MSC and before trial.

27 **False Statement #2: Trial representation regarding non-receipt via subpoena (April 16, 2025):**
28 During trial, when Plaintiff attempted to use a supplemental police narrative or report material,

1 defense counsel (Defendants Navaratnasingham and Reyna) represented, in substance, that the
2 defense subpoenaed the police records and that the document was not received as part of the sub-
3 poena. Plaintiff alleges this representation was false and misleading in light of the production
4 history and defense-side possession and access. This statement was materially false. The truth, as
5 established by sworn hearing testimony and the production history, was that the defense side had
6 already received and had access to the relevant incident materials well before trial.

7 **False Statement #3: Trial representation of uncertainty about the 911 recording (April 16,**
8 **2025):** During trial, when Plaintiff sought to admit the 911 call recording, defense counsel (Defen-
9 dants Navaratnasingham and Reyna) represented, in substance, uncertainty about what recording
10 was being referenced. Plaintiff alleges this representation was false and misleading in light of the
11 defense-side possession and production history, including the defense side's prior receipt of the
12 911 audio during discovery.

13 **Fraud Pleaded With Specificity (who, what, when, where, how):** Plaintiff alleges the follow-
14 ing statements were made in open court in the Underlying Action, on the record, by Defendants
15 Navaratnasingham and Reyna acting for Defendants Abdelhalim, CSAA, and PSA, and were false
16 or misleading:

- 17 1. Pretrial hearing (February 18, 2025): Defendant Navaratnasingham stated, in substance, that
18 "our office did not receive the 911 call until the day of the MSC," that "this is news to me,"
19 and that counsel could not confirm prior receipt or production.
- 20 2. Trial (April 16, 2025): Defense counsel (Navaratnasingham and/or Reyna) stated, in sub-
21 stance, that a supplemental police narrative or report was "not anything that we received as
22 part of the subpoena."
- 23 3. Trial (April 16, 2025): Defense counsel (Navaratnasingham and/or Reyna) stated, in sub-
24 stance, that counsel was "not sure what recording" Plaintiff was referring to regarding the
25 911 call.

26 These statements were false or misleading because, among other reasons, sworn hearing testimony
27 and the production history reflected that the defense side had already received, possessed, or had
28 access to the 911 audio, CAD materials, and bodycam materials long before trial. Defendants

1 PSA, Navaratnasingham, and Reyna had actual or constructive knowledge of this history by virtue
2 of their representation and file possession.

3 **LEG 3: COURT RELIANCE AND RESULTING RULINGS**

4 The Court made the following procedural and evidentiary rulings after defense-side false or mis-
5 leading representations by Defendants PSA, Navaratnasingham, and Reyna:

6 **Ruling #1: Exclusion of Supplemental Report (April 16, 2025):** After defense counsel repre-
7 sented that the supplemental report was “not anything that we received as part of the subpoena,” the
8 Court excluded the supplemental report, stating: “It is not evidence” and “it is not in the report.”
9 (Trial Transcript, Day 7 (4/16/25), Lines 2888–2896.) This procedural ruling was made based on
10 a false or misleading premise about defense-side receipt and access.

11 **Ruling #2: Acceptance of false or misleading non-receipt representation without inquiry**
12 **(February 18, 2025):** After Defendant Navaratnasingham stated that the 911 call was not received
13 until the day of the MSC and that it was “news to me,” the Court accepted the representation
14 without a meaningful verification inquiry, responding only: “I see. Okay.” (Hearing Transcript,
15 Page 141, Line 4221.) This acceptance of false or misleading information corrupted the judicial
16 process by allowing the Court to make procedural decisions based on materially false premises.

17 **Ruling #3: Denial of Continuances and lack of verification inquiry:** The Court denied continu-
18 ance requests and declined to conduct a meaningful verification inquiry after Defendants Navarat-
19 nasingham and Reyna made conflicting and or misleading representations about possession and
20 prior production of the 911, CAD, and bodycam materials. These rulings deprived Plaintiff of a
21 fair opportunity to investigate, authenticate, prepare transcripts and clips, and present the record-
22 ings and related materials in admissible, jury-usable form.

23 **Reliance and causation (but-for allegation):** Plaintiff alleges that, but for the false and mislead-
24 ing representations by Defendants PSA, Navaratnasingham, and Reyna that the defense did not
25 have the materials, could not confirm prior receipt or production, and was not sure what recording
26 was being referenced, the Court would have likely granted a short continuance and or ordered im-
27 mediate on-the-record verification measures (including written production verification, custodian
28 or vendor declarations, and a focused Evid. Code, § 402 foundation procedure) to allow Plaintiff

1 to authenticate and present the recordings. Plaintiff alleges the denial and non-inquiry were the
2 direct result of the Court crediting the defense-side falsehoods and proceeding under a materially
3 false premise about possession and provenance.

4 The fraud was material because it operated on the Court. The defense's false non-receipt/unknown-
5 provenance narrative was used to obtain and defend evidentiary and procedural outcomes, ex-
6 cluding or discounting the 911/BWC/CAD evidence, foreclosing effective cross-examination and
7 authentication pathways, and opposing continuance or other corrective relief. Those rulings and
8 trial constraints prevented Plaintiff from presenting the case on a truthful factual record and were
9 outcome-material.

10 **Ruling #4: Deferred 911 Call Admission (April 16, 2025):** After defense counsel claimed un-
11 certainty about the recording ("I am not sure what recording he is referring to"), the Court deferred
12 admission of the 911 call, requiring Plaintiff to testify first. (Trial Transcript, Day 7 (4/16/25),
13 Lines 3024–3057.) This procedural decision was made based on a false or misleading claim of
14 uncertainty, creating delay and confusion despite defense-side access and production history.

15 **The Effect of the Misconduct:** This misconduct did not merely hide evidence; it corrupted the
16 trial process. It caused the Court to make procedural and evidentiary rulings based on materially
17 false or incomplete information, stripping Plaintiff of the practical ability to:

- 18 1. Present evidence that the defense side had possessed for years.
- 19 2. Request continuances based on accurate information about evidence availability.
- 20 3. Argue spoliation or adverse inference based on the defense side's actual possession of evi-
21 dence.
- 22 4. Present the 911 call admission and body cam footage in a timely, orderly manner.

23 By securing these rulings through fraud, Defendants Abdelhalim, CSAA, PSA, Navaratnasingham,
24 Reyna, Chambers, and Carbone, Smith & Koyama removed issues entirely from the Court's fair
25 consideration. Defendants Chambers and Carbone, Smith & Koyama proximately caused that
26 result by transferring the defense file without proper documentation of the production history,
27 which enabled successor counsel to make the false representations that induced the Court's rulings.
28 Plaintiff was not just deceived; Plaintiff was judicially restrained from presenting the truth through

1 Court orders and rulings procured through false or misleading representations.

2 **CHRONOLOGY OF DEFENSE POSSESSION AND MISREPRESENTATIONS**

3
4 Plaintiff alleges the following record-anchored chronology to show continuity of defense-side receipt, access, and use of the 911 audio, body-worn camera footage, and CAD identifiers, and to
5 show that later “not received,” “news to me,” and “unknown provenance” representations were
6 materially misleading when made.
7

8 **August 18, 2022 (Plaintiff deposition; initial defense receipt/use):** Plaintiff alleges that at or
9 around Plaintiff’s deposition on August 18, 2022, Plaintiff’s then-counsel (Dolan Law Firm) served
10 or provided the defense side with incident materials including the 911 audio, multiple body-worn
11 camera videos, and CAD log identifiers. Plaintiff alleges this is corroborated by sworn hearing
12 testimony summarized below. (Hearing Transcript, February 18, 2025.)

13 **September 30, 2022 (Defendant deposition; materials utilized):** Plaintiff alleges that the same
14 incident materials were utilized during the deposition of Defendant Abdelhalim on September 30,
15 2022, further confirming defense-side possession and practical use during discovery. (Hearing
16 Transcript, February 18, 2025 [Jessup testimony in substance that materials were served and “uti-
17 lized in the deposition of defendants”].)

18 **Key Jessup sworn testimony (February 18, 2025):** Plaintiff alleges that attorney J. Jessup (Dolan
19 Law Firm) testified under oath, in substance, that the materials had been served “at Mr. Rosario’s
20 deposition” and were “utilized in the deposition of defendants,” and that the defense file was later
21 transferred to subsequent defense counsel. (Hearing Transcript, February 18, 2025.)

22 **September 2022 through May 4, 2023 (Chambers and Carbone Smith had possession):** Plain-
23 tiff alleges that during this period, Defendants Michael R. Chambers and Carbone, Smith &
24 Koyama were defense counsel and had possession of the defense file containing the 911 audio,
25 body-worn camera footage, and CAD materials that had been served during discovery. (Hearing
26 Transcript, February 18, 2025; Substitution of Attorney, May 4, 2023, Transaction ID # 69953800.)

27 **May 4, 2023 (PSA substitutes in; Chambers transfers file without proper documentation):**
28 Plaintiff alleges that on May 4, 2023, Defendants Chambers and Carbone, Smith & Koyama trans-

ferred the defense file to PSA pursuant to the Substitution of Attorney (Transaction ID # 69953800) without ensuring proper documentation and conveyance of the production history. PSA substituted in as defense counsel and inherited the defense litigation file, thereby stepping into continuity of defense-side possession of the previously served incident materials. The inadequate handoff enabled PSA and its attorneys to later represent to the Court that the materials were “news to me” and had not been received until the eve of trial.

February 26, 2024 (Reyna requests comprehensive incident records): Plaintiff alleges that defense counsel Alberto Reyna requested “all documents, records stored in any format” regarding the incident on February 26, 2024, which would necessarily encompass the 911, CAD, and body-worn camera categories later portrayed as “unknown” or “not received.” (Trial Transcript, Day 7 (4/16/25) [in substance: request made “on February 26, 2024 . . . all documents, records stored in any format . . . regarding the report that occurred”].)

August 2024 (renewed file transfer to PSA): Plaintiff alleges that by August 2024, the defense file (including the 911 audio, body-worn camera videos, and CAD-related materials) had been transferred to PSA, further reinforcing defense-side possession well before the January 2025 motions in limine and the February–April 2025 hearings and trial. (Hearing Transcript, February 18, 2025 [Jessup testimony in substance re August 2024 transfer].)

September 9, 2024 (CAD identifiers provided to Reyna): Plaintiff alleges that on September 9, 2024, CAD numbers and identifiers were provided to Alberto Reyna, which are key linking identifiers for 911/dispatch/police incident materials. (Hearing Transcript, February 18, 2025 [Jessup testimony in substance regarding September 9, 2024 delivery of CAD numbers].)

September 17, 2024 (trial continued to January 27, 2025): Plaintiff alleges the Court granted an ex parte continuance continuing trial to January 27, 2025, yet defense continued to frame the evidence as “eleventh hour” and “unknown provenance” notwithstanding defense-side receipt dating back to August–September 2022 and renewed possession through 2024. (Order Granting Defendant’s Ex Parte to Continue Trial, September 17, 2024.)

January 17, 2025 (written misrepresentations in motions in limine): Plaintiff alleges that on January 17, 2025, PSA (through attorney Navaratnasingham) filed motions in limine asserting the

1 911 and related materials were “not produced during discovery,” were produced at the “eleventh
2 hour,” and were of “unknown provenance,” despite defense-side receipt/use years earlier as alleged
3 above. (Clerk’s Transcript, Volume 1, Pages 149–151; Clerk’s Transcript, Volume 1, Page 238.)

4 **February 18, 2025 (open-court misrepresentations; direct conflict with sworn testimony):**

5 Plaintiff alleges that at the February 18, 2025 pretrial hearing, defense counsel represented in sub-
6 stance that the defense office did not receive the 911 call until the day of the MSC (or immediately
7 before) and that it was “news to me,” despite sworn testimony (Jessup) describing service at Plain-
8 tiff’s deposition and use at depositions. (Hearing Transcript, February 18, 2025.)

9 **April 16, 2025 (trial repetition: “not received as part of subpoena”; “not sure what record-
10 ing”):** Plaintiff alleges that at trial on April 16, 2025, defense counsel repeated non-receipt and

11 uncertainty narratives inconsistent with the above chronology, including statements in substance
12 that materials were “not anything that we received as part of the subpoena” and “I am not sure
13 what recording he is referring to.” (Trial Transcript, Day 7 (4/16/25), Lines 2875; 2990–2994.)

14 **April 17, 2025 (Defendant authenticates 911 audio):** Plaintiff alleges that on April 17, 2025,
15 Defendant Abdelhalim authenticated the 911 recording at trial (“Yes. That is my voice.”), further
16 undermining the “unknown provenance” and “not sure what recording” posture. (Trial Transcript,
17 Day 8 (4/17/25), Line 1979.)

18 **Time-gap logic (implausibility of “unknown provenance” / “not received” as a benign mis-
19 understanding):** Plaintiff alleges the following elapsed-time gaps show why the defense narrative
20 was materially misleading in context and why the Court’s process was corrupted by reliance on a
21 false premise:

- 22 • Aug. 18, 2022 → Jan. 17, 2025: 883 days.
- 23 • May 4, 2023 → Feb. 18, 2025: 656 days.
- 24 • Sept. 9, 2024 → Jan. 17, 2025: 130 days.
- 25 • Aug. 18, 2022 → Apr. 16, 2025: 972 days.

26 Plaintiff alleges these gaps matter because the defense’s written and oral representations framed the
27 evidence as late-produced, suspicious, and procedurally defective, inducing the Court to impose
28 barriers that prevented Plaintiff from presenting the evidence in timely, usable form at a liability-

only trial.

THE TAINTED TRIAL AND VERDICT

The trial proceeded in April 2025. Bound by the procedural and evidentiary rulings procured through false or misleading defense-side representations, Plaintiff was unable to present the true facts in an orderly, timely manner.

Defendant Abdelhalim took the stand and testified that “no contact” occurred, directly contradicting his own 911 call admission that he “barely hit” Plaintiff. When Plaintiff attempted to present the 911 call admission and bodycam evidence, the Court, relying on defense-side representations about evidence possession and production history made by Defendants PSA, Navaratnasingham, and Reyna, deferred admission, excluded supplemental materials, and denied continuances, preventing effective presentation of the evidence.

The Jury, denied the objective truth and presented with a sanitized, fraudulent version of reality approved by the Court’s procedural rulings based on false information, returned a verdict in favor of Defendant on April 25, 2025, finding that Defendant Abdelhalim was not negligent by a 9–3 vote. (Trial Transcript, Day 11 (4/25/25), Line 16.)

Judgment was entered on April 25, 2025. (Clerk’s Transcript, Volume 6, Page 1689.)

DISCOVERY OF THE FRAUD

Plaintiff first discovered the fraud in January 2025, when defense counsel’s written pretrial filings (including motions in limine dated January 17, 2025) asserted that the 911 recording and related incident records were “not produced during discovery,” were presented at the “eleventh hour,” and were of “unknown provenance.” Those assertions revealed that the Court was being asked to rule on a false factual premise about defense-side possession, production, and provenance of foundational incident evidence, and triggered Plaintiff’s immediate efforts to investigate and correct the record before trial.

DILIGENCE AFTER DISCOVERY

After discovery in January 2025, Plaintiff acted diligently and continuously to address the misconduct: Plaintiff raised the issue in pretrial proceedings (including the February 18, 2025 hearing), sought appropriate relief before and during trial when the defense repeated the non-receipt/unknown-

1 provenance narrative, and pursued post-trial relief as available. Plaintiff then undertook the mini-
2 mum additional investigation necessary to plead this independent action with particularity, includ-
3 ing tracing the procurement/transfer history and identifying the specific misrepresentations and
4 their procedural effects.

5 **TIMELINESS (EQUITY)**

6 This independent action is timely in equity. Plaintiff discovered the fraud in January 2025 and
7 pursued corrective relief promptly through the pretrial and trial stages. Plaintiff brings this ac-
8 tion within a reasonable time after discovery and after the proceedings in which the fraud op-
9 erated, and no prejudice results from the timing because the core issue is record-based (posses-
10 sion/production/provenance and the resulting rulings), with available transcripts and documentary
11 transfers.

12 During and after trial, Plaintiff discovered the full extent of the fraud through hearing testimony
13 and trial transcripts. J. Jessup's sworn testimony at the February 18, 2025 hearing established, in
14 substance, that the defense side had received and or possessed the evidence well before trial, which
15 directly contradicted the representations made to the Court by Defendants Navaratnasingham and
16 Reyna. Upon review of the hearing transcripts, trial transcripts, and evidence, it became immedi-
17 ately clear that defense-side representations to the Trial Judge were false or misleading and were
18 used to secure procedural and evidentiary rulings that excluded evidence, denied continuances,
19 and deferred admission of critical materials. The fraud was not merely suppression; it was active
20 corruption of the judicial process through false or misleading representations that caused the Court
21 to make decisions based on materially false premises.

22 **DAMAGES / EQUITABLE MONETARY RELIEF (ANCILLARY AND** 23 **RESTITUTIONARY)**

24 The fraud-induced litigation burdens were compounded by CSAA's pre-litigation misrepresenta-
25 tion of investigative finality (alleged in the related action CGC-25-631802), which forced Plaintiff
26 into the Underlying Action in the first place. CSAA's February 25, 2021 denial letter, falsely
27 representing a "concluded" investigation, set in motion the entire chain of litigation that the court-
28 room fraud then corrupted. The damages sought herein reflect the incremental harm caused by the

1 courtroom fraud operating on top of the institutional denial that initiated the forced litigation.

2 All monetary relief sought herein is ancillary to vacatur, restitutionary in purpose, temporally
3 bounded to the fraud-driven period, and segregated from any collision damages or ordinary lit-
4 igation burdens. Plaintiff does not seek general personal-injury damages, punitive damages, or
5 attorney's fees for prosecuting this equity action; those theories are reserved for other proceedings.

6 The following categories are pleaded as incidental equitable monetary relief incident to vacatur:

7 1. **Out-of-pocket record, evidence, and process costs** caused by the fraud-on-the-court mech-
8 anism: reporter's transcripts, clerk's transcripts, certified copies, copying and printing, ex-
9 hibit creation, audio and video transcription, authentication costs, storage media, postage and
10 courier, filing fees, service fees, and travel, parking, and mileage for hearings tied to the fraud
11 dispute.

12 2. **Fraud-delta time loss and lost earnings:** The value of productive time wrongfully imposed
13 by the fraud-driven extension, segregated from ordinary litigation time. This includes time
14 spent solely because the process was corrupted: emergency foundation work, repeated mo-
15 tions and appearances that would not exist but for the false "non-receipt/unknown prove-
16 nance" premise, and record reconstruction. Plaintiff's timeline spine supports a bounded
17 fraud-period narrative.

18 3. **Additional medical, therapy, and pharmacy expenses:** Incremental costs temporally tied
19 to documented exacerbations during the fraud-driven period, including therapy visits, medica-
20 tions, and copays for care necessitated by the fraud-driven litigation strain (not the collision).

21 Plaintiff will prove such specials to the extent documented in treatment records.

22 Plaintiff alleges emotional distress, humiliation, and physical toll as concrete harms supporting
23 the prejudice showing and why equity should intervene. To the extent Plaintiff seeks monetary
24 relief for such harms, it is limited to objectively billed care (therapy visits, medications, copays) as
25 pleaded in category 3 above.

26 **LEGAL ARGUMENT: EXTRINSIC FRAUD**

27 **Nature of Independent Action:** An independent action in equity is an ancient remedy, preserved
28 by California common law and Code Civ. Proc., § 187, designed to prevent a grave miscarriage

1 of justice. It is available where a judgment was procured by fraud that is “extrinsic” rather than
2 “intrinsic.” (*Kulchar v. Kulchar* (1969) 1 Cal.3d 467, 471.)

3 **Definition of Extrinsic Fraud:** Extrinsic fraud occurs when a party is deprived of the opportunity
4 to present their claim or defense to the court. It is fraud that prevents a real contest or trial of the
5 issues. It encompasses conduct where a party is kept in ignorance of the suit, or, as in this case,
6 where counsel fraudulently corrupts the court’s process to prevent the other party from utilizing
7 the judicial system effectively. (*Kulchar*, supra, 1 Cal.3d at p. 471; *Aldrich v. San Fernando Valley*
8 *Lumber Co.* (1985) 170 Cal.App.3d 725, 735.)

9 **Distinction from Intrinsic Fraud:** Intrinsic Fraud generally involves perjury or forged documents
10 presented during the trial. The law typically expects litigants to expose such lies through cross-
11 examination. Extrinsic Fraud is collateral to the matter. It involves conduct that prevents the trial
12 from legally taking place on the merits. It includes fraud that corrupts the judicial process itself,
13 such as false statements to the court that cause the court to make procedural and evidentiary rulings
14 based on materially false information.

15 **Application to Facts:** In this matter, Defendants’ conduct constitutes extrinsic fraud for the fol-
16 lowing reasons:

17 **Corruption of the Court’s Machinery:** When Defendants PSA, Navaratnasingham, and Reyna
18 made false and misleading representations to the Court during pretrial hearings and trial, the Court
19 made procedural and evidentiary rulings under materially false premises. The Court’s procedu-
20 ral and evidentiary rulings (excluding evidence, denying continuances, and deferring admission)
21 became the mechanism by which Plaintiff was prevented from fairly presenting critical evidence.
22 This is process corruption, not merely an ordinary evidentiary dispute.

23 **Prevention of Presentation of Case:** Defendants’ false and misleading representations did not
24 just hide evidence; they caused the Court to make procedural and evidentiary rulings that legally
25 barred Plaintiff from presenting evidence in a timely, orderly manner. Plaintiff was prevented from
26 presenting the 911 call admission and bodycam footage effectively because the Court, relying
27 on false or incomplete information provided by Defendants PSA, Navaratnasingham, and Reyna,
28 deferred admission, excluded supplemental reports, and denied continuances. Thus, Plaintiff was

1 deprived of the opportunity to present the case regarding this evidence entirely.

2 **No Remedy at Trial:** Because the Judge had already made procedural and evidentiary rulings
3 based on false information, Plaintiff had no remedy during the trial. One cannot “cross-examine”
4 a Judge’s procedural ruling. The issues were closed before the jury could fairly consider the evi-
5 dence.

6 **The “Process Corruption” Doctrine:** Courts have recognized that while simple discovery non-
7 disclosure may be intrinsic, false statements to the court that cause the court to make procedural
8 and evidentiary rulings based on materially false information constitute extrinsic fraud. (*Aldrich*,
9 *supra*, 170 Cal.App.3d at p. 735; *In re Marriage of Baltins* (1989) 212 Cal.App.3d 66.) Defendants
10 PSA, Navaratnasingham, and Reyna utilized the authority of the Court to validate the deception,
11 thereby making the fraud external to the trial facts and embedded in the trial’s procedural frame-
12 work. Defendants Chambers and Carbone, Smith & Koyama proximately facilitated that fraud by
13 transferring the defense file without proper documentation, enabling successor counsel to make the
14 false representations. Defendants Abdelhalim and CSAA are liable as principals for the conduct
15 of their agents and as direct beneficiaries of the fraud.

16 **The Three-Leg Framework:** This fraud operates on three legs: (1) defense-side knowledge and
17 access to the evidence (supported by sworn hearing testimony and the production history, includ-
18 ing during Defendant Chambers’ and Carbone, Smith & Koyama’s tenure); (2) false and mislead-
19 ing representations by Defendants PSA, Navaratnasingham, and Reyna (including on February 18,
20 2025 and April 16, 2025), enabled by Defendants Chambers and Carbone, Smith & Koyama’s inad-
21 equate file transfer; and (3) Court reliance producing procedural and evidentiary rulings (including
22 exclusion, continuance denials, and deferral of admission). This three-leg framework establishes
23 process corruption and extrinsic fraud.

24 **Equitable Maxims:** “No one shall take advantage of his own wrong.” To allow Defendants to
25 keep a verdict won through false or misleading representations that corrupted the adjudicatory pro-
26 cess would violate fundamental principles of equity and public confidence in the judicial system.
27 (*Kulchar*, *supra*, 1 Cal.3d at p. 471.)

28 **Anticipated Defense Moves (pleaded to pre-empt demurrer and early motions):**

1 1. **“This is intrinsic fraud and final judgment bars relief.”** Plaintiff alleges extrinsic fraud, not
2 intrinsic fraud. The misconduct alleged is not merely perjury or a disputed narrative presented
3 for the jury to weigh. The misconduct alleged is the procurement of court rulings and procedu-
4 ral barriers under materially false premises about receipt and prior possession of critical incident
5 recordings, which deprived Plaintiff of a fair opportunity to present the evidence and obtain a true
6 adversarial contest. The weapon used against Plaintiff was not the lie itself, but the Court’s reliance
7 on that lie to make procedural and evidentiary rulings (denying continuances, excluding evidence,
8 deferring admission) that prevented fair presentation. Equity allows relief where fraud prevents a
9 fair presentation on the merits. (*Kulchar*, supra, 1 Cal.3d at p. 471; *Aldrich*, supra, 170 Cal.App.3d
10 at p. 735.)

11 2. **“Plaintiff should have subpoenaed the police earlier, so there is no causation.”** The equitable
12 wrong is not that Plaintiff failed to subpoena third-party records. The equitable wrong is that the
13 Court was induced to make procedural and evidentiary rulings under a materially false premise
14 about defense receipt and knowledge. Plaintiff alleges that the Court’s denial of a continuance and
15 its refusal to conduct verification measures occurred after and because the Court credited defense-
16 side false and misleading representations by Defendants PSA, Navaratnasingham, and Reyna that
17 the defense did not have the materials and had no knowledge of them. Plaintiff alleges that, but
18 for those representations, the Court would have likely granted a short continuance and or ordered
19 verification measures that would have enabled authentication and admissible presentation. Plaintiff
20 further alleges that the law does not require a litigant to preemptively assume the adversary is
21 lying to the Court and to duplicate discovery and authentication efforts on an emergency basis,
22 especially where the Court is positioned to order verification once the conflict is revealed on the
23 record. The causation chain is: false representation, Court reliance, adverse ruling, deprivation of
24 fair presentation.

25 3. **“Litigation privilege and or anti-SLAPP bars the claim because it is based on in-court**
26 **statements.”** This action seeks equitable relief, including vacatur of a judgment procured by
27 extrinsic fraud and restoration of a fair contest on the merits, and ancillary equitable monetary
28 relief incident to that equitable set-aside. It does not seek tort damages for protected petitioning

1 activity. The in-court representations are alleged solely to show how the judgment was procured
2 and how the Court was induced to make rulings under materially false premises, which is the
3 extrinsic fraud mechanism. Plaintiff alleges a probability of prevailing because the complaint
4 pleads a meritorious case, a satisfactory excuse, diligence, and a direct causation chain from false
5 premises to rulings to deprivation of fair presentation.

1 **CAUSE OF ACTION**

2 **COUNT I: INDEPENDENT ACTION IN EQUITY TO SET ASIDE JUDG-**
3 **MENT FOR EXTRINSIC FRAUD**

4 (Against Defendants Subhi Abdelhalim, CSAA Insurance Exchange, PHILLIPS SPALLAS &
5 ANGSTADT LLP, Priya D. Navaratnasingham, Alberto Reyna, Michael R. Chambers, Carbone,
6 Smith & Koyama, and DOES)

7 Plaintiff incorporates and realleges all preceding paragraphs as though fully set forth herein.

8 A Final Judgment exists in Case No. CGC-21-594102 which is valid on its face but is, in reality,
9 the fruit of a poisonous tree procured through extrinsic fraud that corrupted the judicial process.
10 Defendants PHILLIPS, SPALLAS & ANGSTADT LLP, Priya D. Navaratnasingham, and Alberto
11 Reyna participated directly in that fraud by making false and misleading representations to the
12 Court that induced procedural and evidentiary rulings under materially false premises. Defendants
13 Michael R. Chambers and Carbone, Smith & Koyama participated in that fraud by transferring
14 the defense file to PSA on May 4, 2023, without ensuring proper documentation of the production
15 history, which proximately enabled successor counsel to make those false representations. Defen-
16 dants Abdelhalim and CSAA Insurance Exchange are liable as principals and as beneficiaries of
17 the fraud.

18 **Meritorious Claim:** Plaintiff possesses a meritorious claim. The 911 call admission (“I barely hit
19 him with anything”), body cam footage containing eyewitness statements, and CAD logs clearly
20 demonstrate liability on the part of Defendant Abdelhalim. But for the fraud, it is reasonably
21 certain that the Plaintiff would have secured a favorable verdict. The jury’s 9–3 split on a single
22 negligence question, combined with the suppressed evidence, establishes that the fraud affected
23 the outcome.

24 **Resulting Harm and Need for Ancillary Monetary Relief:** The fraudulent procurement of
25 the judgment also caused Plaintiff substantial consequential harm as set forth in Section III.H.
26 Plaintiff seeks ancillary equitable monetary relief, restitutionary in nature, incident to vacatur and
27 restoration of a fair trial process, against all Defendants including PSA, Navaratnasingham, Reyna,

Chambers, and Carbone, Smith & Koyama. Such relief comprises: (i) record, transcript, and evidence costs; (ii) fraud-delta lost time and lost earnings; and (iii) additional medical and therapy expenses for documented exacerbations during the fraud-driven period. Plaintiff does not seek general personal-injury damages, punitive damages, or attorney's fees for this equity action herein.

Equitable Prerequisites (*Kulchar* factors):

1. Meritorious case: Plaintiff had a meritorious liability case supported by the 911 party admission, corroborating eyewitness statements on bodycam, and CAD-linked incident records.
2. Satisfactory excuse: Plaintiff did not obtain a fair opportunity to present the evidence and the related foundation and presentation mechanics at trial because the Court made key procedural and evidentiary rulings under a materially false premise about defense-side receipt and prior possession of the materials, based on false representations by Defendants PSA, Navaratnasingham, and Reyna.
3. Diligence: Plaintiff acted diligently. Plaintiff raised the issue in the Underlying Action when the dispute surfaced and seeks equitable relief promptly upon confirming the contradiction between defense-side representations and the production history reflected in the record.
4. No adequate remedy at law: Ordinary remedies were rendered inadequate because the judgment was procured through extrinsic fraud that impaired the integrity of the adjudicatory process, not merely through adverse factfinding. Equity is required to restore a fair contest on the merits.

Fraud on the Court: Defendants Abdelhalim, CSAA Insurance Exchange, PHILLIPS, SPALLAS & ANGSTADT LLP, Priya D. Navaratnasingham, Alberto Reyna, Michael R. Chambers, and Carbone, Smith & Koyama engaged in an intentional, unconscionable scheme that interfered with the judicial system's ability to adjudicate the matter impartially. Defendants PSA, Navaratnasingham, and Reyna made false and misleading representations to the Court regarding receipt, possession, and prior production of critical evidence. Defendants Chambers and Carbone, Smith & Koyama proximately facilitated that fraud by transferring the defense file without proper documentation of the production history, enabling successor counsel to make those false representations. CSAA Insurance Exchange funded, directed, and ratified the litigation positions and representations used

1 to procure the judgment. Defendant Abdelhalim is the judgment beneficiary. The three-leg mecha-
2 nism is: (1) defense-side access and knowledge (including during Chambers' and Carbone Smith's
3 tenure); (2) false and misleading representations to the Court by Defendants PSA, Navaratnas-
4 ingham, and Reyna, enabled by Defendants Chambers and Carbone, Smith & Koyama's inade-
5 quate file transfer; and (3) Court reliance producing rulings that impaired Plaintiff's opportunity to
6 present the case.

7 **Balance of Equities:** The balance of equities favors set-aside and retrial. Defendants will suffer
8 no unfairness from a fair trial on the merits, while Plaintiff suffers a severe injustice if a judgment
9 procured through extrinsic fraud remains in place.

10 **PRAYER FOR RELIEF**

11 WHEREFORE, Plaintiff Franciscus Dylan Rosario prays for Judgment against Defendants as fol-
12 lows:

- 13 1. **Vacatur:** That the Court issue an Order vacating and setting aside the Judgment entered in
14 Case No. CGC-21-594102 on April 25, 2025.
- 15 2. **New Trial:** That the Court order a new trial on the merits of the underlying dispute, allowing
16 for the full presentation of the previously suppressed 911 call admission, bodycam footage,
17 and CAD logs without the procedural and evidentiary barriers created by false or misleading
18 defense-side representations.
- 19 3. **Equitable Monetary Relief (Ancillary and Restitutionary):** That the Court award equi-
20 table monetary relief incident to vacatur, restitutionary in purpose, for losses proximately
21 caused by the fraudulent procurement of the judgment, including: (i) out-of-pocket record,
22 transcript, and evidence costs; (ii) fraud-delta lost time and lost earnings; and (iii) additional
23 medical and therapy expenses for documented exacerbations during the fraud-driven period,
24 in an amount to be proven, against Defendants and each of them.
- 25 4. **Costs:** That Plaintiff recover allowable costs of suit.
- 26 5. **General Relief:** For such other and further relief as the Court deems just and equitable.

1 **VERIFICATION**

2 I, Franciscus Dylan Rosario, am the Plaintiff in the above-entitled action. I have read the foregoing
3 Complaint for Independent Action in Equity to Set Aside Judgment for Extrinsic Fraud. The
4 facts stated therein are true of my own personal knowledge, except as to those matters stated on
5 information and belief, and as to those matters, I believe them to be true.

6 I declare under penalty of perjury under the laws of the State of California that the foregoing is
7 true and correct.

8 Executed on February 25, 2026, at San Francisco, California.

9 /s/ Franciscus Dylan Rosario

10 Franciscus Dylan Rosario

Respectfully submitted,

Dated: February 25, 2026



FRANCISCUS DYLAN ROSARIO
Plaintiff, In Pro Per

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